BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

COURT NO. III, NEW DELHI

CAA-84/ND/2020

CA (CAA) -87(ND)/2020

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Arrangements) Rules, 2016.

In the matter of Scheme of Amalgamation
OF
GG ERRECTORS AND CONSTRUCTORS PRIVATE LIMITED
(Applicant Company-1 /Transferor Company-1)
WITH
GG PROMOTERS AND DEVELOPERS PRIVATE LIMITED
(Applicant Company-2/ Transferee Company)

Order Delivered on: 02.06.2022

CORAM:

SHRI BACHU VENKAT BALARAM DAS
MEMBER (JUDICIAL)

SHRI VIRENDRA KUMAR GUPTA
MEMBER (TECHNICAL)

For the Appellant: Mr Sougat Sinha, Mr Judhajit Roy, Mr Manoj Kumar, Advocates

For the Respondent: Mr Shankari Mishra

MEMO OF PARTIES

GG ERRECTORS AND CONSTRUCTORS PRIVATE LIMITED
Registered Office at: S-155 F/F Panchsheel Park
New Delhi-110017

...Transferor Company-1/Applicant Company-1

AND

GG PROMOTERS AND DEVELOPERS PRIVATE LIMITED
Registered Office at: MMCT House, Block A
Okhla Centre, Opposite Holy Family Hospital
New Delhi-110025

Transferee Company/Applicant Company-2

ORDER

Per- Bachu Venkat Balaram Das, Member (J)

1. This petition for second motion has been filed under the provisions of Sections 230-232 of the Companies Act, 2013 read with Rule 15(1) of the Companies (Compromise, Arrangements, Amalgamation) Rules, 2016 for the Scheme of Arrangement (for brevity Scheme) praying for fixing a date of hearing of the main Company Petition for approving the scheme of arrangement by way of demerger as well as for issuance of direction concerning publication of notices in press to be carried and notices to be issued to the authorities concerned including regulators, if any.
2. From the records, it is seen that the First Motion application was filed before this Tribunal vide CA (CAA)- 87(ND)2020 moved under Sections 230-232 of the Companies Act, 2013 and vide order dated 11.11.2020 directions were issued by this Tribunal, wherein the meeting of the Equity Shareholders of

both the applicant companies were dispensed with. In view of the absence of Secured Creditors in both the Applicant Companies, the necessity of convening the meeting did not arise. There are four Unsecured Creditor in relation to the Applicant Company No 1 and three in relation to Applicant Company No 2, who have given their consent affidavits constituting 99% of the value of the credit.

3. Taking into consideration the above facts and record, it is hereby ordered as follows:

(i) The date of hearing of the Petition filed by the Applicants for the approval of the Scheme is fixed on **13th July 2022**.

(ii) Notice of the hearing shall be advertised in the newspapers namely, "Financial Express" (English, Delhi edition) and "Jansatta" (Hindi, Delhi edition) not less than 10 days before the aforesaid date fixed for hearing.

(iii) In addition to the public notice, each of the Applicant(s) shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs; (c) the Income Tax Department through the Income Tax Cell at DCIT (High Court Cell), Lawyer's Chamber, Block No. 1, Room No. 428 & 429, Delhi High Court, New Delhi, along with full details of assessing officer and PAN numbers of all the

applicant companies; (d) Official Liquidator; and to such other Sectoral Regulatory Authorities who may govern the working of the respective companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

(iv) Further, notices shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(v) Both the Applicants shall at least 7 days before the date of hearing of the Petition shall file an affidavit of service in relation to publication effected in the newspapers as well as service of notices on the Authorities specified above including the Sectoral regulator as well as to Objectors, if any.

(vi) Objections to the Scheme, if any, contemplated by the authorities, to whom notices have been given on or before the date fixed for hearing, may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed there under.

(vii) Each Applicant Company shall individually comply with proviso

to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the Act, 2013, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of statutory auditors of the applicant companies.

(viii) The next date of hearing of the Petition shall be on **13th July 2022** for the consideration of the approval of the Scheme of Arrangement as contemplated between the Applicant Companies.

Sd/-

BACHU VENKAT BALARAM DAS)
MEMBER (Judicial)

Sd/-

(VIRENDRA KUMAR GUPTA)
MEMBER (Technical)